

COMPLAINT NUMBER: 2026-0582673

WARRANT NUMBER: GS1128525

PROSECUTOR: Greyson A Wiley

DEFENDANT: John Doe

VICTIM: Gustavo Marquez

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

ASSAULT

T.C.A. 39-13-101

Personally appeared before me, the undersigned **[Select one]** ☒ X Commissioner ☐ Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that **[Select one]** ☒ X he ☐ she **[Select one]** ☐ personally observed ☒ X has probable cause to believe that the defendant named above on 09/27/2026 in Davidson County, did unlawfully **[Select one]** ☒ X intentionally, knowingly, or recklessly cause bodily injury to the victim named above OR ☐ intentionally or knowingly cause the victim named above to reasonably fear imminent bodily injury; OR ☐ intentionally or knowingly cause physical contact with the victim named above and a reasonable person would regard the contact as extremely offensive or provocative and *the probable cause is as follows*:

On 09/27/2026, officers were dispatched to 1146 Gallatin Pk S in relation to a fight occurring at the location. Officers observed a co-defendant actively arguing with security. The co-defendant was detained at which point officers were directed towards the defendant standing with two other co-defendants also in the parking lot. Officers ordered the defendant to stop at which point he attempted to flee on foot. Officers chased the defendant for a short period before he fell and was taken into custody. The defendant was highly intoxicated and had an obvious odor of alcoholic beverage emitting from his person as well as poor balance. The defendant did not have any identification on his person. During a show up with the three victims who were security staff at the location, the defendant was identified as the individual who was initially being escorted out of the bar due to his high level of intoxication. **Gustavo and Angel both also identified him as one of the individuals that had physically struck them during the altercation. Ruby corroborated the statements by the other victims.** While officers were in active investigation, the defendant threw up several times into the backseat of officer's vehicle causing contamination to the patrol vehicle. The defendant was transported to booking.

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Prosecutor: Greyson A Wiley 100006267

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ARREST WARRANT

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Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Assault, Bodily Injury A MISD, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 09/27/2026 06:05:53

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Eugenia R. Grayer McGhee

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant.

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